

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXIndex No.:
Date Purchased:-----X
S.P., an infant under the age of 14 years by his mother and
natural guardian VALENTINA ROSARIO MENDEZ, and
VALENTINA ROSARIO MENDEZ, Individually, VICTOR
CASTILLO-ROSARIO, and ELUPITA ROSARIO,**SUMMONS**Plaintiffs designate
BRONX County as
the place of trial

Plaintiffs,

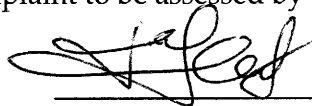
-against-

The basis of venue:
CPLR 504 (3)CITY OF NEW YORK, P.O. DANIEL KERN, and OFFICER[S]
JOHN AND JAMES DOE, names presently unknowable by
Plaintiffs and being fictitious and meant to designate
additional offending officers,

Defendants.

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to serve a
notice of appearance on the Plaintiff's attorneys within twenty days after the service of this
summons, exclusive of the day of service, where service is made by delivery upon you
personally within the state, or within 30 days after completion of service where service is made
in any other manner. In case of your failure to appear or answer, judgment will be taken against
you by default for the relief demanded in the complaint to be assessed by the Court.

Dated: Bronx, N.Y.
July 28, 2017
By: **JONATHAN L. GLEIT, ESQ.**
*Attorney for Plaintiffs*888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007P.O. DANIEL KERN, Shield 9634 of the 46th Precinct
2120 Ryer Avenue Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
S.P., an infant under the age of 14 years by his mother and
natural guardian VALENTINA ROSARIO MENDEZ, and
VALENTINA ROSARIO MENDEZ, Individually, VICTOR
CASTILLO-ROSARIO, and ELUPITA ROSARIO,

Index No.:

VERIFIED COMPLAINT

Plaintiffs,

-against-

CITY OF NEW YORK, P.O. DANIEL KERN, and OFFICER[S]
JOHN AND JAMES DOE, names presently unknowable by
Plaintiffs and being fictitious and meant to designate
additional offending officers

Defendants.

-----X

Plaintiffs, by their attorney, Jonathan L. Gleit, Esq., complaining of the

Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS S.P., an infant under the age of 14 years, VALENTINA ROSARIO
MENDEZ, VICTOR CASTILLO-ROSARIO, and ELUPITA ROSARIO

1. At the time of the commencement of this action, plaintiff VALENTINA ROSARIO MENDEZ was the mother and natural guardian S.P., an infant under the age of 14 years.
2. At the time of the commencement of this action, plaintiff S.P. and VALENTINA ROSARIO MENDEZ were and still are residents of the County of Bronx, City and State of New York.

4. At the time of the commencement of this action, plaintiff VICTOR CASTILLO-ROSARIO was and still is a resident of the County of Bronx, City and State of New York.
5. At the time of the commencement of this action, plaintiff ELUPITA ROSARIO was and still is a resident of the County of Bronx, City and State of New York.
6. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.
7. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
8. That the CITY OF NEW YORK maintains a Police Department.
9. That on and about May 12, 2016, P.O. DANIEL KERN was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
10. That on and about May 12, 2016, at approximately 7:15 P.M. P.O. DANIEL KERN was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about May 12, 2016, OFFICER[S] JANE AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about May 12, 2016, at approximately 7:15 P.M. OFFICER[S] JANE AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

13. That upon information and belief, P.O.s JOHN AND JAMES DOE whose names are presently unknowable by plaintiff but known by defendants, were members of a police department squad which entered Plaintiffs' apartment at the below time and place and never identified themselves individually.

14. That on or about May 12, 2016 at approximately approximately 7:15 PM., at Apartment 4 of 2200 Morris Avenue, Bronx, New York, the plaintiffs S.P., an infant under the age of 14 years, VALENTINA ROSARIO MENDEZ, VICTOR CASTILLO-ROSARIO, and ELUPITA ROSARIO, were detained, assaulted and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to detain, assault or confine S.P., an infant under the age of 14 years, VALENTINA ROSARIO MENDEZ, VICTOR CASTILLO-ROSARIO, and ELUPITA ROSARIO.

15. That the defendants, their agents, servants and/or employees confined and detained the plaintiffs without any basis in law or fact and without reasonable, probable or just cause or justification.

16. That the defendants, their agents, servants and/or employees detained and confined plaintiffs without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

17. That the defendants P.O. DANIEL KERN and/or OFFICER[S] JANE AND JAMES DOE, did, during the aforesaid arrest of plaintiffs, utilized unjustified, unnecessary excessive force.

18. That the defendants, their agents, servants and/or employees unlawfully assaulted, detained and searched the plaintiffs, who were aware of their unlawful detention and confinement and damaged their property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

19. That at the time and place aforesaid, the defendant P.O. DANIEL KERN and/or OFFICER[S] JANE AND JAMES DOE did forcefully enter the Plaintiffs' apartment wrongfully, while attempting to search another's residence and/or arrest another

person, known to Plaintiffs' only as 'Indio', who resided outside of Plaintiffs'

Apartment and was never present inside of Plaintiffs' Apartment.

20. That during the confinement and detention of plaintiffs, defendants did utilize excessive, unnecessary, unjustified force upon plaintiffs.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly wrongfully forcefully entering innocent persons' apartments and or homes, and or sections of homes without proper warrant, privilege or justification for nefarious, unlawful reasons, including to satisfy arrest quotas, and / or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

22. That said illegal and unlawful entries of innocent persons homes without reasonable or probable cause and conducting searches and detaining persons when there is no reasonable basis to conduct a search or detain such persons and without individualized reasonable suspicion of the possession of evidence, are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to

the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

23. Said policy, practice and procedure of wrongfully entering and searching innocent persons homes is documented, for instance, in the 2015 Report entitled " Crossing The Threshold: An Evaluation of Civilian Complaints of Improper Entries and Searches by the NYPD from January 2010 to October 2015" found at <http://www.nyc.gov/html/ccrb/downloads/pdf/Crossing-the-Threshold-2010-2015.pdf> which details numerous other individuals who have been so wronged.

24. Said practice and procedure of falsely wrongfully entering innocent persons homes is well evidence by defendants' own compstat and other statistical tabulations, as well as those of the district attorney, the civilian complaint review board and the bureau of internal affairs.

25. That no negligence or actions on the part of the plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

26. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., and the named defendants' supervisors, including policy makers, by policy,

institutionalized procedure and act, deprived the plaintiffs of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and made applicable under under Title 42 U.S.C. 1983, et seq.

27. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

28. That as a result of the foregoing, the plaintiffs were damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS S.P., an infant under the age of 14 years, VALENTINA ROSARIO
MENDEZ, VICTOR CASTILLO-ROSARIO, and ELUPITA ROSARIO**

29. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 28 as though more fully set forth herein.

30. That on or about July 21, 2016, and within 90 days after the claim herein sued upon, plaintiffs caused Notices of Claim, sworn to by or on behalf of the claimants, to be

presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

31. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

32. The CITY OF NEW YORK conducted General Municipal Law §50h hearings of plaintiffs on September 7, 2016 and plaintiffs did give testimony thereat.

33. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

34. That on or about May 12, 2016 at approximately 7:15 P.M., at Apartment 4 of 2200 Morris Avenue, Bronx, New York, the plaintiffs S.P., an infant under the age of 14 years, VALENTINA ROSARIO MENDEZ, VICTOR CASTILLO-ROSARIO, and ELUPITA ROSARIO were improperly detained and confined without warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in

fact to detain or confine S.P., an infant under the age of 14 years, VALENTINA

ROSARIO MENDEZ, VICTOR CASTILLO-ROSARIO, and ELUPITA ROSARIO

35. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiffs of Due Process under Law.

36. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. DANIEL KERN and OFFICER[S] JANE AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to wrongful detainment, detention and confinement, and the defendants were otherwise careless, reckless and negligent.

37. That the plaintiffs, being aware of their unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, P.O. DANIEL KERN and /or OFFICER[S] JANE AND/OR JAMES DOE.

38. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

39. That as a result of the foregoing, the plaintiffs were damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS S.P., an infant under the age of 14 years, VALENTINA ROSARIO
MENDEZ and ELUPITA ROSARIO

40. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 39 as though more fully set forth herein.

41. That during the aforesaid detainment, the defendants, their agents, servants and/or employees utilized unnecessary, excessive and unjustified force against the plaintiffs S.P., an infant under the age of 14 years, VALENTINA ROSARIO MENDEZ and ELUPITA ROSARIO.

42. As a result of the aforesaid assaults, plaintiffs S.P., an infant under the age of 14 years, VALENTINA ROSARIO MENDEZ and ELUPITA ROSARIO received injuries with accompanying physical and emotional pain and suffering; that the plaintiffs were made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiffs and for the purchase of drugs and medicines, and that plaintiffs were and in the future will be prevented from attending to plaintiffs' usual vocation and avocations and were otherwise damaged and injured.

43. That no negligence or actions on the part of the plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.
44. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
45. That as a result of the foregoing, the plaintiffs were damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS S.P., an infant under the age of 14 years, VALENTINA ROSARIO
MENDEZ, VICTOR CASTILLO-ROSARIO, and ELUPITA ROSARIO**

46. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 45 as though more fully set forth herein.
47. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.
48. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the

proper and lawful entries of persons' homes and in the proper confinement, detention of individuals and in the proper use of force.

49. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendants' negligence, plaintiffs were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiffs were made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiffs and for the purchase of drugs and medicines, and that plaintiffs were and in the future will be prevented from attending to plaintiffs' usual vocation and avocations; all to the plaintiffs' damage in sums which exceed the jurisdiction of all lower Courts.

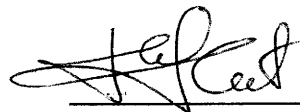
50. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and

attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.

July 28, 2017



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiffs

S.P., an infant under the age of 14 years,
VALENTINA ROSARIO MENDEZ and
ELUPITA ROSARIO

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. DANIEL KERN, Shield 9634 of the 46th Precinct
2120 Ryer Avenue Bronx, NY 10457 **CASTILLO-ROSARIO**

PLAINTIFF'S VERIFICATION

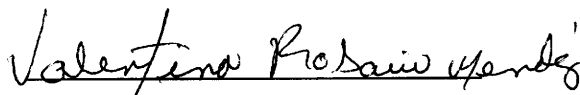
VALENTINA ROSARIO MENDEZ , affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


VALENTINA ROSARIO MENDEZ

PLAINTIFF'S VERIFICATION

VICTOR E. CASTILLO-ROSARIO, affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

Victor E. Castillo-Rosario
VICTOR E. CASTILLO-ROSARIO

PLAINTIFF'S VERIFICATION

ELUPITA ROSARIO , affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

Elupita Rosario
ELUPITA ROSARIO